

25STCV10940 25STCV10940

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Case Number: 25STCV10940 Hearing Date: August 21, 2026 Dept: 400

PETITION TO

CONFIRM MINOR'S COMPROMISE

The Court

tenders the following tentative decision in the matter Esther Mendoza, et al. v. Edmond Khudyan, et al., Los Angeles County Superior Court case number 25STCV10940, set for hearing on August 21, 2026. Petitioner requests that the Court grant the Petition to approve the compromise of the disputed claim of minor Daniel Raya (Claimant). The petition is granted.

A.

Procedural

Requirements

Esther Mendoza (Petitioner) is the parent and guardian ad litem of Claimant.

Petitioner has filed a Proposed

Order with the petition. (Scruton v.

Korean Air Lines Co., Ltd. (1995) 39 Cal.App.4th 1596, 1603–1605 [stating that a petition for court approval must comply with Cal. Rules of Court, rules 7.950, 7.950.5, 7.591 and 7.952].) Petitioner uses Judicial Council form MC-350 for the Petition and presents the Court with a Proposed Order Approving Compromise of the Disputed Claim.

The Petition is thus procedurally proper.

B.

Substantive Requirements

Court approval is required for all settlements of a minor or dependent adult's claim. (Prob. Code, §§ 3500, 3600; Code Civ. Proc., § 372.)

Pursuant to Probate Code section

3600, subdivision (a)(2), a court may approve a compromise of a pending action or proceeding to which a minor or person with a disability is a party. Upon making such an Order,

[t]he court . . . shall make a further order authorizing and directing that reasonable expenses, medical or otherwise and including reimbursement to a parent, guardian, or conservator, costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or person with a disability.

(Prob. Code, § 3601, subd. (a).)

C.

Discussion

Petitioner has completed form

MC-350 and adequately satisfied its requirements. After reviewing the Petition, the Court finds that the settlement is fair and reasonable. Edmond Khudyan, Beach Front Property Management, Inc., and Avalon Point, LLC (collectively, Defendants) will pay Claimant \$7,500. (Petition ¶ 11(b).) Petitioner will also receive a payment under the settlement. (Ibid.) Nothing will be taken out of the minor's settlement as medical expenses. (Id. ¶ 12.) \$3,000 will be taken out of each Claimant's recovery as attorney's fees. (Id. ¶ 13.) Claimant will thus receive \$4,300 from the settlement after \$200 are deducted for other expenses. (Petitions ¶ 16.) In total, counsel is receiving a 40% contingent fee from Claimant. (Ibid.)

The Court finds that the present

arrangement represents reasonable attorney's fees as required under Probate Code section 3601. As recognized in *Schulz v. Jeppesen Sanderson, Inc.* (2018) 27 Cal.App.5th 1167, 1175, a trial court may act within its discretion to

award less than the agreed upon contingent fee amount. Courts consult rule 7.955(b) of the Rules of Court to determine a reasonable attorney's fee for a minor claimant. (Id. at pp. 1174–1175.) “The court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.” (Rules of Court, rule 7.955(a)(2).)

In determining a reasonable attorney's fee, the courts consider the following factors: (1) the fact that a minor is involved and their circumstances; (2) the amount of the fee in proportion to the value of services performed; (3) the novelty and difficulty of legal questions and skill required to provide adequate services; (4) the amount involved and results obtained; (5) the time limitations or constraints imposed by the minor's representative; (6) the nature and length of the professional relationship; (7) the experience, reputation, and ability of the attorneys; (8) the time and labor required; (9) the informed consent of the minor's representative; (10) the relative sophistication of the attorney and representative; (11) the likelihood that the attorney's acceptance of the case would preclude other employment; (12) the nature of the fee as fixed, hourly, or contingent; (13) for contingent fees, the risk of loss, amount of costs advanced by the attorney, and delay in payment of fees and reimbursement of their costs; and (14) other statutory requirements. (Id., rule 7.955(b).)

Here, counsel's fee is reasonable considering the complexity of the present case and its contingent nature. Thus, the Court finds the attorney's fee award and costs estimate to be reasonable. (Ibid.) Accordingly, Petitioner's petition is granted.

Conclusion:

The Court grants the petition.